

ORIGINAL

April 17, 2002

FEDERAL MARITIME COMMISSION

46 CFR Part 540

[Docket No. 94-06]

Financial Responsibility Requirements for Nonperformance of Transportation

AGENCY: Federal Maritime Commission.

ACTION: Proceeding Discontinued.

SUMMARY: The Federal Maritime Commission ("Commission") published a Notice of Proposed Rulemaking ("NPR") in 1994 and a Further Notice of Proposed Rulemaking ("FNPR") in 1996 that proposed to amend its financial responsibility requirements applicable to passenger vessel operators ("PVOs") for nonperformance of transportation. A number of comments were received to the FNPR. Given significant changes that have occurred in the cruising industry, and the recent financial difficulties experienced by several PVOs, the Commission has determined to reevaluate its requirements. Separate rulemakings will be initiated for that purpose. Accordingly, this proceeding can be, and hereby is, discontinued.

DATES: [THIS PROCEEDING IS DISCONTINUED UPON PUBLICATION IN THE FEDERAL REGISTER.]

FOR FURTHER INFORMATION CONTACT:

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Bureau of Consumer Complaints and Licensing
Federal Maritime Commission
800 North Capitol Street, N.W. Room 970
Washington, D.C. 20573-0001

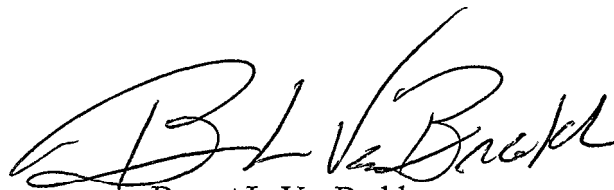
(202) 523-5787

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SUPPLEMENTARY INFORMATION:

An NPR was published in the Federal Register on March 31, 1994 (59 FR 15149), that proposed to amend 46 CFR 540 to increase nonperformance coverage for the traveling public by removing the \$15 million unearned passenger revenue coverage ceiling, eliminate the self-insurance option from passenger vessel operator section 3 coverage, and adjust the sliding scale provision. After the comments were considered by the Commission, the NPR was held in abeyance pending a further examination of the issues in a formal Inquiry, Docket No. 94-21, Inquiry into Alternative Forms of Financial Responsibility for Nonperformance of Transportation, (59 FR 52133) ("Inquiry") published October 26, 1994. After assessing the comments in response to the Inquiry, the Commission issued an FNPR on June 26, 1996 (61 FR 33059), to specifically address some of the issues raised in comments to both the NPR and the Inquiry. More recently, the bankruptcies of several PVOs, coupled with the experience of passengers in receiving payment in satisfaction of claims, led to a reevaluation of the rules governing PVO coverage of unearned passenger revenue. As a result, the Commission determined to initiate separate proceedings to take a fresh look at these and related issues. Therefore, this proceeding is hereby discontinued.

By the Commission.



Bryant L. VanBrakle
Secretary

a resolution of 0.096 degrees. Note, however, that this resolution is nearly identical to the smallest increment used in deflection of the roll control surfaces for each model, which is 0.092 degrees in the A310 aircraft and 0.091 degrees in the A300-600 aircraft. Thus, achieving the additional resolution would provide no substantive benefit.

For A318/319/320/321 series aircraft. Parameter 84, cockpit trim control input position-yaw: Required to be resolved to 0.08 degrees (0.2% of operational range of ± 20 degrees but is implemented with a resolution of 0.088 degrees. Note, however, that this resolution surpasses the smallest increment used to deflect the yaw control surfaces for each model, which is 0.112 degrees for the A320 family.

For A310, A300-600, A318/319/320/321, A330 and A340 (except A340-500 and -600 models) series aircraft. Parameter 88, cockpit flight control input forces-rudder pedal: Required to have accuracy of 5% but is implemented with an accuracy of 2.5%-15%, depending upon the position of the pedal adjustment for ergonomic reasons, and the exact position of the pedals at the time the force is applied. These inaccuracies arise from the complex mechanical arrangement necessary to transmit pedal forces to the rudder control cables. There are two principal sources of this inaccuracy, and it is possible that one or both of them may be eliminated in post-accident analysis. However, for the purpose of compliance determination, Airbus elects to assume a worst case situation where neither inaccuracy can be eliminated, and therefore seeks this rule change.

The first uncertainty and largest source of inaccuracy is that associated with ergonomic adjustment of the pedal position to accommodate pilots of differing heights. If the pedal position selected can in fact be determined (for example by examination of the aircraft after an accident or incident), then this inaccuracy can be eliminated. The second uncertainty comes from the fact that, for a given pedal force, the recorded force varies somewhat depending on the position of the rudder pedals when the force is applied. If it is possible (and it should be so) to use the recorded rudder pedal position to calculate the position inaccuracy in post accident/incident review, then this inaccuracy can also be eliminated. Note that the resolution of this parameter as recorded complies with the required 0.2% of full range, and therefore the functionality of the recorded parameter is not adversely affected.

In the appendix to its petition, Airbus submits specific proposed regulatory

language. In Appendix M to part 121 and Appendix E to part 125, Airbus requests that footnotes be added to the recording requirements for parameters 83, 84, and 88. For parameter 83, Airbus recommends the following footnote: For A310 and A300-600 airplanes, resolution = 0.69% (0.096 degrees). For parameter 84, Airbus requests the following footnote: For A318/319/320/321 series aircraft, resolution = 0.22% (0.088 degrees). For parameter 88, Airbus requests the following footnote: For A310, A300-600, A318/319/320/321, A330 and A340 (except A340-500 and -600 models) series aircraft, accuracy = 15 % . .

According to Airbus, the changes requested are minor and technical in nature, and none would significantly affect the ability of accident investigators to perform their tasks. Additionally, Airbus contends that the changes would neither adversely affect the safety of the aircraft, hinder the investigation of accidents or incidents, nor compromise the intent of the DFDR rules. Airbus states the changes only would account for the differences in Airbus DFDR equipment when compared to the precise regulatory requirements.

Airbus also asserts that a large cost to US operators would obviously be involved in redesigning and fitting new equipment to effect literal compliance with the recording resolution requirements of the current regulations. In addition, with the delivery of new aircraft whose implemented DFDR recording equipment differs from that installed on existing aircraft, a second set of spares and additional record keeping requirements would need to be instituted, further increasing costs on an ongoing basis. These added costs would not be balanced by an gain in safety or investigative capability deriving from such changes. It is, therefore, in the public interest to make the requested regulatory modifications so as to obviate an unnecessary and unproductive expenditure by US airlines, according to Airbus.

Airbus requests that the FAA issue a final rule without notice and prior public comment.

[FR Doc. 02-9129 Filed P-19-02; 8:45 am]

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FEDERAL MARITIME COMMISSION

46 CFR Part 540

[Docket No.94-06]

Financial Responsibility Requirements for Nonperformance of Transportation

AGENCY: Federal Maritime Commission.

ACTION: Proceeding discontinued.

SUMMARY: The Federal Maritime Commission ("Commission") published a Notice of Proposed Rulemaking ("NPR") in 1994 and a Further Notice of Proposed Rulemaking ("FNPR") in 1996 that proposed to amend its financial responsibility requirements applicable to passenger vessel operators ("PVOs") for nonperformance of transportation. A number of comments were received to the FNPR. Given significant changes that have occurred in the cruising industry, and the recent financial difficulties experienced by several PVOs, the Commission has determined to reevaluate its requirements. Separate rulemakings will be initiated for that purpose. Accordingly, this proceeding can be, and hereby is, discontinued.

DATES: This proceeding is discontinued as of April 22, 2002.

FOR FURTHER INFORMATION CONTACT: Sandra Kusumoto, Director, Bureau of Consumer Complaints and Licensing, Federal Maritime Commission, 800 North Capital Street, NW, Room 970, Washington, DC 20573-0001, (202) 523-5787, Email:SandraK@fmc.gov

SUPPLEMENTARY INFORMATION:

An NPR was published in the Federal Register on March 31, 1994 (59 FR 15149), that proposed to amend 46 CFR part 540 to increase nonperformance coverage for the traveling public by removing the \$15 million unearned passenger revenue coverage ceiling, eliminate the self-insurance option from passenger vessel operator section 3 coverage, and adjust the sliding scale provision. After the comments were considered by the Commission, the NPR was held in abeyance pending a further examination of the issues in a formal Inquiry, Docket No. 94-21, *Inquiry into Alternative Forms of Financial Responsibility for Nonperformance of Transportation*, (59 FR 52133) ("Inquiry") published October 26, 1994. After assessing the comments in response to the Inquiry, the Commission issued an FNPR on June 26, 1996 (61 FR 33059), to specifically address some of the issues raised in comments to both the NPR and the Inquiry. More recently, the bankruptcies of several PVOs,

coupled with the experience of passengers in receiving payment in satisfaction of claims, led to a reevaluation of the rules governing PVO coverage of unearned passenger revenue. As a result, the Commission determined to initiate separate proceedings to take a fresh look at these and related issues. Therefore, this proceeding is hereby discontinued.

By the Commission.

Bryant L. VanBrakle,

Secretary.

[FR Doc. 02-9795 Filed 4-19-02; 8:45 am]

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DEPARTMENT OF TRANSPORTATION

National Highway Traffic Safety Administration

49 CFR Parts 533

[Docket No. 2002-11419]

RIN 2127-A170

Correction to Request for Comments; National Academy of Sciences Study and Future Fuel Economy Improvements, Model Years 2005-2010

AGENCY: National Highway Traffic Safety Administration (NHTSA), Department of Transportation.

ACTION: Correction to request for comments.

SUMMARY: This document contains corrections to the request for comments on the National Academy of Sciences study and future fuel economy improvements for model years 2005-2010, which was published on Thursday, February 7, 2002 (67 FR 5767).

DATES: The comment deadline remains May 8, 2002.

FOR FURTHER INFORMATION CONTACT: For non-legal issues, call Ken Katz, Lead Engineer, Consumer Programs Division, Office of Planning and Consumer Programs, at (202) 366-0846, facsimile (202) 493-2290, electronic mail, kkatz@nhtsa.dot.gov. For legal issues, call Otto Matheke, Office of the Chief Counsel, at (202) 366-5263.

SUPPLEMENTARY INFORMATION:

Background

The request for comments that is the subject of this correction seeks information that will assist the agency in developing a proposal for light truck CAFE standards for model years beyond 2004. NHTSA currently plans to cover some or all of model years 2005 to 2010 in the proposal. The agency is seeking

information that will help it assess the extent to which manufacturers can improve light truck fuel economy during those years, the benefits and costs to consumers of fuel economy improvements, the benefits to the nation of reducing fuel consumption, and the number of model years that should be covered by the proposal.

Need for Correction

As published, the appendix to the request for comments contains errors, which are in need of clarification.

Correction of Publication

Accordingly, the publication on February 7, 2002 (67 FR 5767) is corrected in the appendix as follows:

On page 5775, definition number 1, which set forth a number of definitions as follows: " 'Automobile,' 'fuel economy,' 'manufacturer,' and 'model year,' have the meaning given them in Section 501 of the Motor Vehicle Information and Cost Savings Act, 15 U.S.C. 2001," refers to a statutory section that has been recodified. Definition number 1 is corrected to read " 'Automobile,' 'fuel economy,' 'manufacturer,' and 'model year,' have the meaning given them in Section 32901 of Chapter 329 of Title 49 of the United States Code, 49 U.S.C. 32901." On page 5775, definition number 3, "Basic engine," item (i) the parenthetical phrase "(in cubic inches)" is corrected to read "(in liters)."

On page 5775, definition number 4, "Domestically manufactured" which stated: " 'Domestically manufactured' is used as defined in Section 503(b)(2)(E) of the Act." is corrected to read " 'Domestically manufactured' is used as defined in Section 32904(b)(2) of Chapter 329, 49 U.S.C. 32904(h)(2)."

Oh page 5775, definition number 16, "Transmission class" contains a typographical error in the citation of the regulation referenced in the definition. The first sentence of the definition, which stated: " 'Transmission class' is used as defined in 40 CFR 600.002-05(22)(a)," is corrected to read " 'Transmission class' is used as defined in 40 CFR 600.002-85(a)(22)."

On page 5775, definition number 17, "Truckline," which stated: " 'Truckline' means the name assigned by the Environmental Protection Agency to a different group of vehicles within a make or car division in accordance with that agency's 1994 model year pickup, van (cargo vans and passenger vans are considered separate truck lines), and special purpose vehicle criteria" is corrected to read, " 'Truckline' means the name assigned by the Environmental Protection Agency to a different group

of vehicles within a make or car division in accordance with that agency's 2001 model year pickup, van (cargo vans and passenger vans are considered separate truck lines), and special purpose vehicle criteria."

On page 5776, specification number 3, item f, which stated "Estimated power absorption unit (PAU) setting, in hp" is corrected to read, "Estimated power absorption unit (PAU) setting, in hp. Alternately, the total road load horsepower at 50 miles per hour can be provided."

On page 5776, specification number 5, inadvertently skipped the letter d when listing the standards or equipment the agency is seeking comment on. Specification number 5 is corrected to read as follows:

5. Relative to MY 2001 levels, for MYs 2005-2010, please provide information, by truckline and as an average effect on a manufacturer's entire light truck fleet, on the weight and/or fuel economy impacts of the following standards or equipment:

- a. Federal Motor Vehicle Safety Standard (FMVSS 208) Automatic Restraints
- b. FMVSS 201 Occupant Protection in Interior Impact
- c. Voluntary installation of safety equipment (e.g., antilock brakes)
- d. Environmental Protection Agency regulations
- e. California Air Resources Board requirements
- f. Other applicable motor vehicle regulations affecting fuel economy.

On page 5776, specification number 6, the phrase "provide the requested information for each of items '6a' through '60'" is corrected to read "provide the requested information for each of items '6a' through '6q'."

On page 5777, specification number 8, the phrase " 'a' through 'k' ", which appears in the first paragraph and the third paragraph, is corrected to read " 'a' through 'i' ".

On page 5777, specification number 8, item g, the sentence "Average PAU setting: Provide the value and show whether the value (or estimated value) is based on coastdown testing (T) or calculated from the vehicle frontal area (C). Round the PAU value to one decimal Place" is corrected to read "Average PAU setting: Provide the value and show whether the value (or estimated value) is based on coastdown testing (T) or calculated from the vehicle frontal area (C). Round the PAU value to one decimal Place. Alternately, the total road load horsepower at 50 miles per hour can be provided."

On page 5777, specification number 11, the sentence "For each new or